

GALLANT IAS ACADEMY
PRELIMS CUM MAINS BATCH 2027
POLITY
MODULE 2.8
STATE LEGISLATURE

Article 168: Constitution of State Legislature

There shall be a Legislature for every State, consisting of the **Governor** and, in some states, two Houses - the **Legislative Council** and the **Legislative Assembly**. Six states currently have a Legislative Council: **Bihar, Uttar Pradesh, Maharashtra, Karnataka, Andhra Pradesh and Telangana**.

Article 169: Abolition or Creation of Legislative Councils in States

Parliament may, by law, provide for the abolition of the Legislative Council of a State having such a Council, or for the creation of such a Council in a State having none, if the Legislative Assembly of that State passes a resolution to that effect by a majority of the total membership of the Assembly and by a majority of not less than two-thirds of the members present and voting. Parliament itself, however, has to pass the resulting law by a **simple majority**.

Article 170: Composition of Legislative Assembly

The total membership of a Legislative Assembly has a **maximum strength of 500** and a **minimum of 60**. Certain smaller states are exceptions: **Arunachal Pradesh, Sikkim and Goa** have their minimum fixed at **30**, **Mizoram** at **40**, and **Nagaland** at **46**.

Members are directly elected by the people from territorial constituencies in the state, by the **First-Past-The-Post (FPTP)** system, on the basis of universal adult franchise. Every citizen who is **18 years of age** and not otherwise disqualified under the Constitution or any law is eligible to vote (the voting age was lowered from 21 to 18 by the **61st Constitutional Amendment Act, 1988**).

Delimitation

Question	Answer
What is the principle for dividing seats within a state?	The ratio between the population of each constituency and the number of seats allotted to it is kept the same across the state; the preceding census figures are used for this purpose
Who conducts the exercise?	The Constitution requires an adjustment after every census; Parliament is empowered to determine the authority and manner in which delimitation is carried out. Parliament has enacted the Delimitation Commission Act four times - in 1952, 1962, 1972 and 2002
What is the present position?	The 42nd CAA, 1976 froze the allocation of seats among the states based on the 1971 census; the 84th CAA, 2001 extended this freeze until 2026. The 87th CAA, 2001 empowered the government to reorganise territorial constituencies based on the 2001 census figures, without

Question	Answer
	altering the number of seats allocated to each state. The President specifies the date on which a delimitation order comes into force

Article 171: Composition of Legislative Council

The total membership of a Legislative Council cannot exceed **one-third** of the strength of the Legislative Assembly, subject to a minimum of **40** (this can be varied if Parliament so prescribes). Its composition is as follows:

- As nearly as may be, one-third elected by electorates consisting of members of municipalities, district boards and such other local authorities as Parliament may by law specify
- As nearly as may be, one-twelfth elected by electorates consisting of persons who have, for at least three years, been graduates of any university in India (or who hold an equivalent qualification prescribed by Parliament)
- As nearly as may be, one-twelfth elected by electorates consisting of persons who have, for at least three years, been engaged in teaching in educational institutions within the state not lower in standard than a secondary school
- As nearly as may be, one-third elected by the members of the Legislative Assembly of the state from amongst persons who are not members of the Assembly
- The remainder nominated by the Governor from persons having special knowledge in Literature, Science, Art, the Cooperative Movement and Social Service

Elections to the Legislative Council are conducted by **Proportional Representation through the Single Transferable Vote (PR-STV)**.

Article 172: Duration of the Houses

House	Duration
Legislative Council	A continuing chamber, not subject to dissolution. The term of a member is fixed at 6 years by the RPA, 1951; one-third of the members retire every two years, and retiring members may be re-elected or re-nominated
Legislative Assembly	5 years from the date of its first meeting after elections, after which it automatically dissolves. During an Emergency, its term can be extended by Parliament by one year at a time, for any number of times; once the Emergency is over, this extension cannot continue beyond a further 6 months

Article 173: Qualification of Members

House	Qualifications
Legislative Council	Must be a citizen of India; Must take an oath or affirmation (before a person authorised by the Election Commission) to bear true faith and allegiance to the Constitution and to uphold the sovereignty and integrity of India; Must be not less than 30 years of age

House	Qualifications
	Parliament may prescribe (via the RPA, 1951) - an elector for any assembly constituency of the state, and, if nominated, a resident of the state
Legislative Assembly	Must be a citizen of India; Must take the same oath or affirmation; Must be not less than 25 years of age; and Must be an elector for any assembly constituency of the state, as prescribed under the RPA, 1951

Article 174: Session of State Legislature, Prorogation and Dissolution

The Governor shall, from time to time, summon each House of the state Legislature to meet at such time and place as he thinks fit. A gap of **six months** shall not exist between the last sitting of one session and the date fixed for the first sitting of the next session. The Governor also prorogues the Houses and dissolves the Legislative Assembly.

Article 175: Right of Governor to Address and Send Messages to Houses

The Governor has the right to address and send messages to the Houses of the state Legislature.

Article 176: Special Address by the Governor

The Governor addresses the Houses at the commencement of the first session after a general election to the Assembly, and at the commencement of the first session of each year.

Article 177: Rights of Ministers and the Advocate General

Ministers and the Advocate General for the state have the right to attend and speak in the proceedings of the House, but are not entitled to vote unless they are also members of that House.

Articles 178-185: Presiding Officers of the Houses

The provisions governing the Speaker and Deputy Speaker of the Legislative Assembly (Articles 178-181) closely mirror those governing the Chairman and Deputy Chairman of the Legislative Council (Articles 182-185):

Aspect	Legislative Assembly (Speaker / Deputy Speaker)	Legislative Council (Chairman / Deputy Chairman)
Election	Elected from amongst its own members	Elected from amongst its own members
Vacation of office	If he ceases to be a member of the Assembly	If he ceases to be a member of the Council
Resignation	Speaker resigns to the Deputy Speaker, and vice versa	Chairman resigns to the Deputy Chairman, and vice versa

Aspect	Legislative Assembly (Speaker / Deputy Speaker)	Legislative Council (Chairman / Deputy Chairman)
Removal	By an effective majority (a majority of all the then members), with 14 days' notice	By an effective majority (a majority of all the then members), with 14 days' notice
If the office falls vacant	The Deputy Speaker carries out the work of the Speaker	The Deputy Chairman carries out the work of the Chairman
If the deputy's office is also vacant	The Governor may appoint a person for the purpose	The Governor may appoint a person for the purpose
If absent	The Deputy Speaker chairs the House	The Deputy Chairman chairs the House
If the deputy is also absent	As per the rules of the House	As per the rules of the House
While a removal resolution against him is considered	Cannot preside, but can vote and speak as a member	Cannot preside, but can participate and vote

The Speaker does not vacate office until immediately before the first meeting of the next Legislative Assembly.

Article 186: Salaries and Allowances of the Chairman, Deputy Chairman, Speaker and Deputy Speaker

Their salaries are fixed by the state Legislature; until so fixed, the amounts mentioned in the Second Schedule apply. This expenditure is charged on the Consolidated Fund of the State.

Article 187: Secretariat of State Legislature

Each House of a state Legislature has a separate secretarial staff.

Article 188: Oath or Affirmation by the Members

Members take their oath or affirmation before the Governor, or a person appointed by him for the purpose. The form of the oath is prescribed in the **Third Schedule**.

Article 189: Voting in Houses and Quorum

Unless the Constitution provides otherwise, matters are decided by a majority of votes of members present and voting. The Chairman or Speaker does not vote in the first instance, but exercises a casting vote in case of a tie. The **quorum** is 10 members or one-tenth of the total membership of the House, whichever is greater; the Speaker or Chairman must suspend proceedings if there is no quorum.

Article 190: Vacation of Seats

- If a person becomes a member of both Houses of the state Legislature, the state Legislature decides by law which seat he retains
- If a person becomes a member of multiple state legislatures, he must specify, within a stipulated time, which seat he intends to retain, as per rules made by the President

- A resignation is addressed to the Speaker or Chairman; if the presiding officer believes the resignation is not voluntary or genuine, it may not be accepted
- A member's seat becomes vacant if he is absent from the House for more than 60 days (periods when the House is prorogued, or adjourned for more than 4 days, are not counted for this purpose)
- Other cases include being elected as President, Vice-President, or Governor

Article 191: Disqualification

Ground	Detail
Office of profit	Holding an office of profit under the Government of India or of any state, other than an office the state Legislature has declared by law not to disqualify its holder; being a Minister is not treated as an office of profit
Unsound mind	As declared by a competent authority
Undischarged insolvent	-
Citizenship	Voluntarily acquiring the citizenship of a foreign country
Others	Disqualification under the Anti-Defection Law (Tenth Schedule)

Article 192: Decision on Disqualification

The decision on whether a member has become disqualified is taken by the **Governor**, in consultation with the Election Commission, whose opinion is binding on him. In the case of disqualification under the Anti-Defection Law (Tenth Schedule), the deciding authority is the **Speaker**.

Article 193: Penalty for Sitting and Voting Before Making Oath or Affirmation

Article 193 prescribes a penalty for a member who sits or votes in the House before making the oath or affirmation required under Article 188.

Article 194: Powers, Privileges of the House, its Members and Committees

Members of a state Legislature are protected from legal action for anything said or any vote given during proceedings of the House or its committees. This protection also extends to the **Advocate General** while participating in the proceedings of the state Legislature, but does **not** extend to the Governor.

Article 195: Salaries and Allowances of MLAs

The salaries and allowances of members are determined by the state Legislature by law.

Article 196: Ordinary Bill

A bill pending in the Legislative Assembly does not lapse by reason of the prorogation of the House.

Effect of dissolution of the Legislative Assembly on bills

- A bill pending in the Assembly lapses, whether it originated in the Assembly or was transmitted to it by the Legislative Council
- A bill passed by the Assembly but still pending in the Council lapses

- A bill pending in the Council, but not passed by the Legislative Assembly, does not lapse
- A bill passed by both the Assembly and the Council but pending the Governor's assent does not lapse
- A bill passed by both Houses but returned by the Governor for the Houses' reconsideration does not lapse

Article 197: Restriction on Powers of Legislative Council Other Than on a Money Bill

Where a bill passed by the Legislative Assembly is transmitted to the Legislative Council:

- If the Council rejects the bill, or does **not** pass it within 3 months of it being laid before the Council, or passes it with amendments the Assembly does not agree to - the Assembly may pass the bill again and transmit it to the Council once more
- If, on this second occasion, the Council again rejects the bill, or does not pass it within 1 month, or passes it with or without amendment - the bill is deemed to have been passed by both Houses in the form passed by the Legislative Assembly the second time

In this way, the Legislative Council's role on an ordinary bill is only suspensive - it can be overridden by the Legislative Assembly.

Article 198: Special Provisions as to Money Bills

The same general procedure as for Money Bills in Parliament applies at the state level.

Article 199: Definition of Money Bills

A bill is a Money Bill if it contains provisions dealing only with:

- The imposition, abolition, remission, alteration or regulation of any tax
- The regulation of the borrowing of money, or the giving of any guarantee, by the state, or amendment of the law relating to any financial obligations undertaken or to be undertaken by the state
- The custody of the Consolidated Fund or the Contingency Fund of the state, and the payment of moneys into, or withdrawal of moneys from, any such Fund
- The appropriation of moneys out of the Consolidated Fund of the state
- The declaring of any expenditure to be expenditure charged on the Consolidated Fund of the state, or increasing the amount of any such expenditure
- The receipt of money on account of the Consolidated Fund or the Public Account of the state, or the custody or issue of such money
- Any matter incidental to any of the matters specified in the above clauses

Article 74: Council of Ministers to Aid and Advise the President

There shall be a Council of Ministers, with the **Prime Minister** at its head, to aid and advise the President, who shall act in accordance with such advice. Two amendments have shaped this provision: the **42nd CAA, 1976** made this advice binding on the President in the exercise of his functions; the **44th CAA, 1978** added that the President may require the Council of Ministers to reconsider such advice once, and shall act in accordance with the advice tendered after such reconsideration.

The question of whether, and if so what, advice was tendered by Ministers to the President cannot be inquired into by any court. In **Shamsher Singh vs State of Punjab (1974)**, the Supreme Court held that wherever the Constitution requires the satisfaction of the President or the Governor, it is not their personal satisfaction but the satisfaction of the Council of Ministers. Executive actions are taken in the name of the President.

Article 163: Council of Ministers to Aid and Advise the Governor

There shall be a Council of Ministers, with the **Chief Minister** at its head, to aid and advise the Governor in the exercise of his functions, except in so far as he is required by or under the Constitution to act in his discretion. If a question arises whether a matter is or is not one in which the Governor is required to act in his discretion, the Governor's decision on that question is final, and the validity of anything he does cannot be questioned on the ground that he ought or ought not to have acted in his discretion.

Article 200: Assent to Bills

When a bill passed by the state Legislature is presented to the Governor, he has four possible responses:

- Assent - the bill becomes an Act
- Withhold assent - the bill does not become law
- Return for reconsideration - the Governor sends the bill back with a message; once the House(s) reconsider and re-pass it, with or without amendment, the Governor "shall not withhold assent"
- Reserve for the President's consideration - the bill is referred to the Union executive

Reservation of a bill is mandatory if, in the Governor's opinion, it would derogate from the powers of the High Court so as to endanger its constitutionally designed position. No fixed timeline is prescribed anywhere in the bare text of Article 200 - the only standard stated is "as soon as possible." **A Money Bill can never be returned.**

Article 201: Bills Reserved for Consideration

Where the Governor reserves a bill, the President may assent to it, withhold assent, or (if the bill is not a Money Bill) direct the Governor to return it to the House(s) for reconsideration. A bill so returned must be reconsidered by the House(s) within **6 months**; if it is passed again, with or without amendment, and presented to the President once more, the President may or may not give assent - he is under no obligation to do so.

Article 361: Immunity of the President and Governors

The President, the Governor, or the Rajpramukh of a State shall not be answerable to any court for the exercise and performance of the powers and duties of his office, or for any act done or purporting to be done by him in the exercise and performance of those powers and duties.

State of Tamil Nadu vs Governor of Tamil Nadu (8 April 2025)

The Tamil Nadu Governor sat on bills for years - one pending over seventeen months - before withholding assent to ten bills and reserving two for the President in November 2023, by which time the Assembly had already re-passed several of them.

Verdict

- **No pocket veto** - the Court held there is no concept of an absolute or indefinite veto under Article 200; the Governor's referral of the re-enacted bills to the President was termed "erroneous in law"
- **Bound by aid and advice** - the Governor must act on the advice of the State Council of Ministers under Article 163; no broad personal discretion was recognised under Article 200
- **Withholding cannot stand alone** - withholding assent must be exercised together with the return mechanism

- **No reservation after reconsideration** - once a bill is re-passed following return, the Governor cannot then reserve it for the President; reservation is available only at first presentation
- **Fixed timelines introduced** - one month for the Governor to assent to a bill or reserve it for the President, when acting on the Council of Ministers' advice; three months to withhold assent against the Council of Ministers' advice, returning the bill with reasons; and one month to assent to a bill re-passed without amendments
- **"Deemed assent" doctrine** - the pending bills were treated as having received assent by operation of the Court's Article 142 power, given the unconstitutional delay
- **Justiciability affirmed** - the Governor's and President's actions under Articles 200 and 201 were held to be subject to judicial review

Presidential Reference - November 2025 Verdict

President Droupadi Murmu invoked her **Article 143** advisory jurisdiction on 13 May 2025, referring fourteen questions on the reasoning of the April 2025 verdict.

- **"Deemed assent" struck down** - the Court held it cannot deem a bill assented to by judicial fiat, since this would usurp the Governor's or President's own distinct constitutional role and breach the separation of powers
- **Rigid judicial timelines rejected** - the Court declined to read fixed deadlines into Articles 200 and 201
- **Reviewability of prolonged inaction** - delay remains justiciable, but only on the narrower grounds of mala fides, manifest arbitrariness, or constitutional impropriety, not mere lapse of time
- **Withholding still tied to return** - a Governor cannot withhold assent and simply stop there; the obligation to return the bill with comments continues to apply

Final Position

Provision	Governor's / President's Options
Article 200 (Governor)	Assent; withhold assent and return the bill to the Legislature for reconsideration (if the same bill is re-passed, the Governor must then assent); or reserve the bill for the President's consideration
Article 201 (President, on a reserved bill)	May assent, withhold assent, or direct the Governor to return the bill for reconsideration. A reconsidered bill, passed again with or without amendment, is presented to the President once more, who may or may not give assent

Article 202: Annual Financial Statement (Budget)

The Governor shall, in respect of every financial year, cause to be laid before both Houses of the state Legislature a statement of the estimated receipts and expenditure of the State Government for that year, referred to as the "**annual financial statement**". It has to show separately the sums required to meet expenditure charged on the Consolidated Fund of the State, and the sums required for other expenditure proposed from the Consolidated Fund of the State, distinguishing between revenue expenditure and other expenditure.

Expenditure charged on the Consolidated Fund of the State

- The emoluments and allowances of the Governor and other expenditure relating to his office

- The salaries and allowances of the Speaker and Deputy Speaker of the Legislative Assembly, and, in a state having a Legislative Council, also of the Chairman and Deputy Chairman of that Council
- Debt charges for which the state government is liable, including interest, sinking fund charges and redemption charges, and other expenditure relating to raising loans and the service and redemption of debt
- The salaries and allowances payable to Judges of any High Court exercising jurisdiction in relation to any area within the territory of India
- Any sums required to satisfy any judgment, decree or award of any court or arbitral tribunal
- Any other expenditure declared by the Constitution, or by the state Legislature by law, to be so charged

Article 203: Procedure in Legislature with Regard to Estimates

With regard to charged expenditure, no voting is carried out - only discussion. With regard to other expenditure, it is submitted in the form of a demand for grants, and no demand for a grant shall be made except on the recommendation of the **Governor**.

Article 204: Appropriation Bills

After the demands for grants are accepted, an Appropriation Bill is introduced. Money cannot be withdrawn from the Consolidated Fund of the State until the Appropriation Bill is passed.

Article 205: Supplementary, Additional or Excess Grants

Type of Grant	When it Applies
Supplementary Grant	Granted when the amount authorised by the Assembly through an Appropriation Act for a particular service in the current financial year is found to be insufficient
Additional Grant	Granted for additional expenditure upon a new service not contemplated in the budget for that year
Excess Grant	Granted when money has already been spent on a service in excess of the amount granted for that service in the budget; it must be approved by the Public Accounts Committee before being submitted to the Assembly

Article 206: Vote on Account, Vote of Credit, Exceptional Grant

Mechanism	Description
Vote on Account	Allows roughly one-sixth of the budgeted expenditure to be sanctioned in advance, pending passage of the full Budget
Vote of Credit	Granted to meet an unexpected demand upon the resources of the state, functioning as a blank cheque given to the Assembly
Exceptional Grant	Granted for a special purpose and forms no part of the current service of any financial year

Article 207: Financial Bills

The same procedure as for Financial Bills in Parliament applies at the state level, except that, as with an Ordinary Bill, the Legislative Council's position can be overridden by the Legislative Assembly.

Article 208: Rules of Procedure

Each House of a state Legislature can make rules to regulate its own procedure and the conduct of its business.

Article 209: Regulation by Law of Procedure in the Legislature of a State in Relation to Financial Business

The state Legislature may, by law, regulate the procedure and conduct of business with respect to financial matters.

Article 210: Language to be Used in the State Legislature

- Business is to be transacted in English, Hindi, or the official language of the state
- The Speaker or Chairman may permit a member to address the House in their mother tongue

Article 211: Restriction on Discussion in the State Legislature

No discussion shall take place in a state Legislature with respect to the conduct of any Judge of the Supreme Court or of a High Court in the discharge of his duties.

Article 212: Courts Not to Enquire into Proceedings of the State Legislature

The validity of any proceedings in a state Legislature shall not be called in question on the ground of any alleged irregularity of procedure. No officer or member of a state Legislature in whom powers are vested for regulating procedure, conducting business, or maintaining order shall be subject to the jurisdiction of any court in respect of the exercise of those powers.

Article 213: Power of the Governor to Promulgate Ordinances

At any time except when both Houses of the state Legislature are in session, the Governor may promulgate an ordinance as the circumstances appear to him to require. The ordinance ceases to operate at the expiry of **six weeks** from the reassembly of the Legislature, unless disapproved earlier by a resolution of the House(s); it can also be withdrawn by the Governor at any time. The ordinance-making power extends only to subjects on which the state Legislature can make law.

The Governor cannot make an ordinance without instructions from the President in three cases:

- If a bill containing the same provisions would have required the previous sanction of the President for its introduction into the state Legislature
- If he would have deemed it necessary to reserve a bill containing the same provisions for the President's consideration
- If an Act of the state Legislature containing the same provisions would have been invalid unless, having been reserved for the President's consideration, it had received his assent

Legislative Councils: Prospects and Issues

Prospects	Issues
Provides representation to teachers and graduates as distinct professional constituencies	Low voter turnout in several Legislative Council elections, including teachers' and graduates' constituencies; graduates are also no longer a rare enough category to justify a separate constituency
Enables more considered legislation and acts as a check on hasty majoritarianism	The process of creating a Legislative Council is lengthy - several states have passed resolutions requesting one, but Parliament has not acted on them, and this can leave legislation stalled in the interim
Gives voice to grassroots democracy	Can serve as a back-door entry route for politicians who have failed to win a direct election
Allows participation of experts who may not wish to contest direct elections	Can create difficulties if the opposition gains control of the Legislative Council
	Expensive institutions to maintain
	Lacks substantial law-making power compared to the Legislative Assembly

Reforming the Legislative Councils

- The 2nd ARC recommended doing away with the graduates' and teachers' constituencies and creating more space for local body representation instead
- The 2nd ARC recommended that every state should have a Legislative Council, with its members elected entirely by local bodies

PREVIOUS YEAR QUESTIONS - PRELIMS

1. With reference to the Delimitation Commission, consider the following statements: (2012)

1. The orders of the Delimitation Commission cannot be challenged in a Court of Law.
2. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, they cannot effect any modifications in the orders.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

2. Consider the following statements: (2015)

1. The Legislative Council of a state in India can be larger in size than half of the Legislative Assembly of that particular state.
2. The Governor of a State nominates the Chairman of the Legislative Council of that particular state.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

3. **With reference to the Legislative Assembly of a State in India, consider the following statements: (UPSC 2019)**

1. The Governor makes a customary address to Members of the House at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on a particular matter, it follows the Lok Sabha rule on that matter.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

4. **Consider the following statements: (UPSC 2018)**

1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

PREVIOUS YEAR QUESTIONS - MAINS

1. Explain the constitutional provisions under which the legislative councils are established. Review the working and current status of Legislative Councils with suitable illustrations (UPSC 2021, 15M)

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